

BARRETT, J., concurring in part

portant difference in this context is that the President is entitled to an interlocutory appeal of the trial court's ruling. See *ante*, at 636. A criminal defendant in federal court normally must wait until after trial to seek review of the trial court's refusal to dismiss charges. See *United States v. MacDonald*, 435 U. S. 850, 853–854 (1978); see also 18 U. S. C. § 3731. But where trial itself threatens certain constitutional interests, we have treated the trial court's resolution of the issue as a “final decision” for purposes of appellate jurisdiction. *MacDonald*, 435 U. S., at 854–856; see 28 U. S. C. § 1291; see also § 1257.

The present circumstances fall squarely within our precedent authorizing interlocutory review. When a President moves to dismiss an indictment on Article II grounds, he “makes no challenge whatsoever to the merits of the charge against him.” *Abney v. United States*, 431 U. S. 651, 659 (1977) (allowing interlocutory appeal of rejection of double jeopardy defense). He instead contests whether the Constitution allows Congress to criminalize the alleged conduct, a question that is “collateral to, and separable from” his guilt or innocence. *Ibid.* Moreover, the President's Executive Branch authority “would be significantly undermined if appellate review” of the constitutional challenge “were postponed until after conviction and sentence.” *Id.*, at 660; see also *Helstoski v. Meanor*, 442 U. S. 500, 507 (1979) (allowing interlocutory appeal of refusal to dismiss an indictment on

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Counsel has advocated for a clear-statement rule if applying a statute would “raise serious constitutional questions relating to the President's constitutional authority.” See Application of 28 U. S. C. § 458 to Presidential Appointments of Federal Judges, 19 Op. OLC 350, 350–357 (1995). In my view, neither canon applies in this circumstance. Courts should instead determine the statute's ordinary meaning and, if it covers the alleged official acts, assess whether prosecution would intrude on the President's constitutional authority. See *Public Citizen*, 491 U. S., at 481–482 (Kennedy, J., concurring in judgment) (declining to apply the avoidance canon and concluding that the Federal Advisory Committee Act is unconstitutional as applied).